प्रधान आयुक्त सीमा शुल्क (आयात) का कार्यालय
OFFICE OF THE PR. COMMISSIONER OF CUSTOMS (IMPORT),
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Date: 23.02.2026

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 16.02.2026

The First meeting of Permanent Trade Facilitation Committee (PTFC), for the month of February 2026 was held in the Conference Hall of ACC at 12:00 Noon on 16.02.2026 and was chaired by Shri Manish Chandra, Principal Commissioner of Customs (Import) and co-chaired by Shri Hardeep Batra, Commissioner of Customs (Export). The following officers and representatives participated in the meeting:

Sl. no.	Name & Designation	Organization
1	Shri Shri Neelesh Rautkar, Addl. Commissioner of Customs (Import)	Customs, ACC, Mumbai
2	Shri Tagadi Manjunath, Addl. Commissioner of Customs (Import)	Customs, ACC, Mumbai
4	Shri N Pandiyaraj, Addl. Commissioner of Customs (Export)	Customs, ACC, Mumbai
5	Ms. Daribha Lyndem, Joint Commissioner (Export)	Customs, ACC, Mumbai
6	Shri Kanhaiya Poddar, Deputy Commissioner of Customs (Import)	Customs, ACC, Mumbai
7	Shri M. Sree Harsha, Assistant Commissioner of Customs (Import Shed)	Customs, ACC, Mumbai
8	Shri Rajesh Solanki, Assistant Commissioner of Customs (Export)	Customs, ACC, Mumbai
9	Shri Itha Ramalingeshwara Rao, Assistant Commissioner of Customs (Import)	Customs, ACC, Mumbai
10	Shri Deepak Kumar Singh, Superintendent, (Import Technical)	Customs, ACC, Mumbai
11	Shri Sudhir, Appraiser, (Import, Technical)	Customs, ACC, Mumbai
12	Shri Amrinder Sandhu, Superintendent, (Export, E&T)	Customs, ACC, Mumbai
13	Shri Ranveer Singh, Superintendent, (General)	Customs, ACC, Mumbai
14	Shri Parveen Kumar, Examiner (Export, E&T)	Customs, ACC, Mumbai
15	Shri Sourav Kumar, Examiner, (Import, Technical)	Customs, ACC, Mumbai

Sl. no.	Name of attendees of Stakeholders	Organization
1	Shri Ketan Desai, Secretary	BCBA
2	Shri Sanjeev Harale, President	BCBA
3	Shri Kalyan Naupute, Export Committee	BCBA
4	Shri Dushyant Mulani, Chairman	BCBA
5	Shri Nirav Thakkar, Secretary	BCBA
6	Shri Paresh Sangani, Chairman	BCBA
7	Ms. Chaitaly Mehta, Export Chairperson	BCBA
8	Shri Shailesh Sharma	ACAAI
9	Shri Rajen Bhatia, Chairman	ACAAI
10	Shri Swapnil S. Harekar, Dy. Manager	MIAL
11	Shri Vishal V. Kamble, Dy. Manager	MIAL Security
12	Shri Amit Kadam, Asst. Manager	MIAL
13	Shri Naresh Kumar, Deputy Manager	MIAL
14	Shri Vijay N. Bhagudia, Associate Manager	MIAL
15	Shri Parshuram Upadhyay, Secretary	CSC
16	Shri Pramod Pereira, General Manager	CSC
17	Shri Subodh Thakur, Manager	MCSCAPL

- No PGA attended the PTFC meeting.

The Principal Commissioner of Customs welcomed all the attendees. The following agenda points were taken up for discussion and decision: -

OPEN POINTS FROM LAST PTFC MEETING HELD ON 19.01.2026

1. **Space issue in Perishable Cargo Terminal (PCT):**

BCBA highlighted that severe congestion is being experienced at the Perishable Cargo Terminal due to acute space constraints. As a result, vehicles are taking considerable time for off-loading, leading to increased detention and adversely impacting cargo handling operations, including flight delays.

BCBA requested that the matter be taken up with the Cargo Service Centre (CSC) for augmentation of space and handling capacity, so that increased volumes can be managed efficiently and goods can be off-loaded in a timely manner.

Discussion and Decision:

MIAL representative Shri Pramod Pereira, informed that handling cargo after long weekends poses operational challenges due to increased volume and space constraints. To regulate inflow, MIAL is implementing a restriction on cargo carting to not more than 48 hours prior to flight departure to ensure better space management and avoid congestion. However, in cases involving large consignments or specific flight connectivity requirements, MIAL coordinates individually with freight forwarders and permits advance carting on a case-to-case basis, ensuring proper loading and safe storage to prevent damage.

(Point Closed)

NEW AGENDA POINTS RECEIVED FROM TRADE/STAKEHOLDERS

1. **Delay in Clearance of Second-Hand Machinery Due to Rejection of Empanelled Chartered Engineer Reports**

BCBA reported that clearance of second-hand machinery is being delayed due to rejection of reports submitted by empanelled Chartered Engineers at the Shed level. It has been requested that once a Chartered Engineer is empanelled with ACC Customs, their reports may not be rejected by Shed officers. The trade is facing significant delays and cost implications, especially where machinery is imported by airfreight.

Further, importers are also facing difficulty due to limited availability of Chartered Engineers for examination, as per departmental requirements. An early resolution is requested.
(Illustrative case: INBOM4 BOE No. 7299578 dated 04.02.2026).

Discussion and Decision:

DC, Shed (I) clarified that Chartered Engineer Certificate was not rejected in the cited case. It was further stated that CE Certificates are not rejected at the Shed level. Pr. Commissioner said that CE Certificates found issued incorrectly are liable to be rejected in Investigations and Adjudications but there is no rejection earlier.

(Point Closed)

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2. **Recovery of Interest on Penalty Amount by TRC (I) Department**

BCBA members have reported that the TRC (I) Department is recovering interest on penalty amounts from the date of filing of the Bill of Entry. BCBA has requested clarification and resolution of this issue, as importers are compelled to pay the same or advised to file appeals, leaving them with limited options.

Discussion and Decision:

ADC (I) clarified that the matter appears to pertain to payment of Penalty under Section 114A of the Customs Act 1962, where the amount of Penalty is equivalent to the differential duty and interest thereon. There is no ambiguity and Recovery action is taken as per law. Supreme Court judgement exists with the same interpretation.

(Point Closed)

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3. Webinar on E-Bond Submission

On behalf of the trade, BCBA requests that a webinar may be conducted on E-Bond submission procedures to assist stakeholders in smooth compliance. BCBA suggested that a dedicated awareness session/webinar be organized at the earliest for the benefit of the trade.

Discussion and Decision:

It was decided that the Department will organize the webinar shortly; however, BCBA shall first provide a detailed note highlighting specific difficulties and issues faced by trade in the e-Bond module so that the session can be structured accordingly. The Webinar will be held separately and not in PTFC meeting.

(Point Closed)
Action: BCBA

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4. Non-Availability of Auto Credit Facility for Payments Made to Air India

BCBA members have informed that Air India has still not provided an auto credit facility for payments made to them. This issue was raised earlier, and AIATSL had assured implementation of the same. MIAL has already provided such a facility over a year ago.

Discussion and Decision:

The representative of Air India, Shri Rajen Bhatia, informed that discussions have been held with the Bank's IT team and assured that the matter will be resolved within one week.

(Point Closed)

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5. Grant of Manual LEO in case of System failure at ACC Mumbai (Export)

BCBA highlighted that at present, in cases of System failure on the import side, the facility of granting manual Out of Charge (OOC) is being extended. BCBA has requested that a similar facility may kindly be extended on the export side by issuing a Public Notice permitting the grant of manual Let Export Order (LEO) during System failures, so as to avoid delays, congestion and hardship to exporters.

Discussion and Decision:

BCBA representative Ms. Chaitaly Mehta raised the issue of system failure on a Saturday night affecting export consignments, including live animals with a request for a formal provision for manual clearance in such cases.

ADC (Export) clarified that existing Public Notices already permit manual LEO for perishable cargo.

Commissioner (Export) stated that, as per instructions, all cases involving manual processing are required to be placed before the Commissioner for approval. For urgent consignments and in emergency situations, the matter may be brought to the notice of the competent authority even during late hours or holidays.

(Point Closed)

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6. <u>Erratic functioning of ICEGATE System hampering Import/Export clearances.</u>

BCBA highlighted that for the past 25 days, the ICEGATE system has been functioning erratically, resulting in the non-generation of Bills of Entry and Shipping Bills, thereby delaying import and export clearances. BCBA has requested that the matter kindly be taken up with DG Systems in the larger interest of EXIM trade at ACC Mumbai.

Discussion and Decision:

BCBA representative Shri Dushyant Mulani raised concerns regarding delays in the latest SWIFT 2.0 (Single Window Interface for Facilitating Trade) module, stating that after the PGA grants ADC/NOC (FSSAI, AQ & PQ), approvals that earlier reflected immediately are now taking 90–180 minutes to update, and in some cases Bills of Entry are not reflecting in ADC offices. He informed that the matter has been taken up with the ADG (Systems), screenshots have been shared, and the IT team is reportedly working on a patch.

General slowness in ICEGATE, particularly after 5:00 PM, was also highlighted, along with recurring issues relating to e-Sanchit, Challan reflection, and OTP generation, including a recent PAN-India incident where challans did not reflect for over 24 hours.

It was decided that BCBA will submit a detailed representation along with case examples, after which the matter would be escalated to DG Systems.

(Point Closed)

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7. <u>Frequent breakdown of CARR message between Customs and Custodian</u>

BCBA has observed that the CARR message exchange system between Customs and Custodians is frequently non-functional, at least twice a week, leading to delays in export clearances.

Discussion and Decision:

BCBA representative Ms. Chaitaly Mehta reported frequent CARR System breakdowns over the past few weeks, particularly after 4:00 PM, with outages lasting 2–3 hours, especially in January and early February. She stated that email alerts are issued during outages and Trade Circulars are released when downtime exceeds six hours.

MCSCAPL representative Shri Subodh Thakur, informed that they are closely coordinating with the ICEGATE team as soon as email alerts are received about the system outages, which are promptly shared in the Custodian Group. He further stated that no major issues were observed during the past week.

Commissioner (Export) informed that the issue of System breakdown, if noticed, is being escalated to the IT team. It was noted that the recurring failures may be due to system overloading, file junking, feeding errors, or possible hardware/software issues. He has advised that a detailed official log be maintained for one month, recording the date, duration, cause of each failure, and the manner in which it was resolved. He further suggested stationing a KALE Logistics Engineer during peak hours for closer monitoring of the system performance.

Pr. Commissioner said that the KALE Logistics may require to upgrade their System and if necessary, representatives of KALE may be invited to future PTFC meetings.

(Point Open)
Action: BCBA

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8. <u>Issuance of MIAL passes without insistence on Police Verification</u>

BCBA informed that while applying for MIAL passes, MIAL is insisting on Police Verification. BCBA submits that the applicants are holders of valid Customs passes of F, G, and H categories, which are issued after due Police Verification by the Customs Department and are valid for a lifetime.

BCBA requests that Police Verification may not be insisted upon for applicants who are already Customs pass holders, and that MIAL passes may also be issued with lifetime validity in line with their Customs passes.

Discussion and Decision:

MIAL representative Shri Vijay N. Bhagudia, Associate Manager, clarified that Police verification is mandatory under BCAS (Bureau of Civil Aviation Security) guidelines, which requires verification every three years for issuance of Airport Entry Permits (AEPs). The passes issued by MIAL are only an extension of the BCAS

authorization and cannot exceed the three-year validity linked to Police verification. He further explained that the cargo entry permits are primarily meant for Customs Brokers and others who are not in a position to obtain independent security clearance. While BCAS has granted a limited exemption authorizing MIAL to issue such permits on its behalf, all other applicants must obtain the requisite security clearance. He reiterated that lifetime validity cannot apply to security clearances, which must be revalidated every three years.

Representatives of the BCBA submitted that Customs issues F/G/H Category Passes, including lifetime G-Cards, after due Police verification and CID approval. They suggested that where a valid Police NOC already exists, it should be accepted for cargo entry permits up to its three-year validity without separate verification. It was also stated that airports such as Chennai and Kolkata do not insist on separate Police verification in similar cases. It was further requested that where Customs has issued QR code-based Passes under CBLMS (Customs Broker License Management System) after due verification, the pass validity of the cargo entry permit may be considered co-terminus with the NOC validity.

After deliberations, it was decided to convene a separate meeting with the concerned stakeholders, MIAL and BCAS to examine the issue and work out a practical solution before the next PTFC meeting, if feasible.

Ms. Chaitaly Mehta (BCBA) also raised concerns regarding submission of the complete MC 21 form due to confidentiality issues and requested permission to submit relevant extracts after masking sensitive information. It was agreed that sensitive portions may be hidden, and the remaining relevant details may be submitted accordingly.

(Point Open)
Action: MIAL, Stakeholders & BCAS

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9. <u>Delay in Unloading of Export Bonded Cargo</u>

BCBA have reported delays in unloading of export bonded cargo due to the non-availability of security personnel for granting vehicle entry permission at the docking area. BCBA requests MIAL to deploy a dedicated security officer for this purpose, as Custom Brokers are currently facing considerable difficulty in coordinating approvals, leading to avoidable delays.

Discussion and Decision:

MIAL representative Shri Vijay N. Bhagudia, Associate Manager, clarified that entry is regulated through designated Security Duty Managers (SDM) and that delays are primarily due to dock availability constraints rather than denial of entry.

He stated that bonded cargo, which operates within a defined timeline, is generally accorded priority and that no formal complaints in this regard have been received.

It was decided that SDM contact numbers would be reshared for better coordination and that trade would submit specific instances of delay for review. It was assured that grievances would be addressed promptly.

(Point Closed)

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10. <u>Scrolls are not generated against pending Shipping Bills</u>

BCBA has observed that scrolls are not being generated in cases where Shipping Bills remain pending, causing difficulties to exporters and stakeholders. The issue may be examined and appropriate remedial measures may be issued.

Discussion and Decision:

JC (Export) Ms. Daribha Lyndem, informed that the matter has now been resolved, scrolls are being generated regularly, and issues are being addressed within three days. At present, there is no pendency.

Commissioner (Export) stated that the data was reviewed following these concerns. It was observed that in January, scrolls were not generated on nine days due to System issues, and on six to seven occasions, scrolls contained fewer than 100 Shipping Bills despite completion of formalities. He informed that two scrolls are now being generated daily—morning and evening—instead of one. The issue is considered resolved, and stakeholders were advised to report any continuing problems.

(Point Closed)

In addition to the Agenda Points discussed above, following other Points were taken up for discussion with the permission of Pr. Commissioner.

11. <u>Implementation of Faceless Assessment in Exports.</u>

It was found in discussions with BCBA representative Shri Dushyant Mulani and ACAAI representative Shri Rajen Bhatia that stakeholders are generally not in favour of implementing Faceless Assessment for Exports until existing issues in Import Faceless Assessment—such as proper timelines, escalation mechanisms, and jurisdictional control—are resolved. As export cargo is time-sensitive and delays

could cause serious losses, especially for perishables and pharmaceuticals, trade is apprehensive about Faceless Assessment.

Pr. Commissioner clarified that, the Faceless Export model, if introduced, would be structured differently addressing such concerns.

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12. Feedback on implementation of SWIFT 2.0

BCBA representative Shri Ketan Desai informed that after Phase I onboarding of AQ, PQ and FSSAI under SWIFT 2.0, the System is still not functioning satisfactorily, with PGA approvals/NOCs not reflecting in the ADC/CDSCO Portal, resulting in repeated submissions and delays of 2–3 days compared to earlier manual processing. It was informed that the issue has been taken up with the concerned PGA authorities and that corrective measures are underway. The concerns were recorded and will be followed up with the PGAs and Directorate of Systems, with stakeholders requested to share specific instances for escalation.

It was noted that No PGA attended the PTFC meeting.

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13. Action to be taken on Installation of a Gate Scanner for Oversized Cargo:

CSC representative Shri Parshuram Upadhyay, Secretary, informed that screening is presently carried out by the Regulated Agent (RA) within the designated security hold area after Customs examination. He stated that gate scanning is not covered under existing provisions, which may result in double screening.

Stakeholders emphasized the need for larger infrastructure to handle oversized, project, and defence cargo, citing examples from other airports such as Bangalore where gate scanning facilities are reportedly available. It was stressed that uniformity across major airports is essential, as the absence of comparable facilities may lead to diversion of cargo to other locations.

Commissioner (Exports) advised ADC (Export) Shri N Pandiyaraj, to undertake a study by deputing an officer from the Shed to examine which air cargo terminals have implemented gate scanning facilities. The findings may be presented in the next meeting.

Pr. Commissioner also said that Gate scanning practices at other major airports, be examined and a brief note be submitted after consultation. The matter will be reviewed to arrive at a practical and uniform solution.

The meeting ended after the foregoing discussions.

This issues with the approval of the Principal Commissioner of Customs, Import, ACC, Mumbai.

(Tagadi Manjunath)
Additional Commissioner of Customs,
Import, ACC, Mumbai - III

Copy:
1. Pr. Commissioner/ Commissioner of Customs, Import/Export/General, ACC.
2. All Addl./JC Commissioner of Customs, Import/Export/General/Pr.CCO, ACC.
3. All members of PTFC including BCBA & ACAAI (via e-mail).
4. DC/EDI for uploading on ACC website (via e-mail).
5. PGAs, ACC Mumbai (via e-mail).
6. Office copy.